

23STCV28393 23STCV28393

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Case Number: 23STCV28393 Hearing Date: September 21, 2026 Dept: 406

LOS ANGELES SMSA LIMITED PARTNERSHIP dba

VERIZON WIRELESS,

Plaintiff,

v.

JESUS GARCIA, et al.,

Defendants.

Case No.: 23STCV28393

Hearing Date: September 21, 2026

[TENTATIVE]

order RE:

cross-complainant majestic enterprises,

lp's motions to compel further responses (CRS# 0009, 4205)

BACKGROUND

On November 20, 2023, Plaintiff Los

Angeles SMSA Limited Partnership (Verizon) filed this action against Defendants

Jesus Garcia, Marlene Garcia, Spectrum Cellular Management LLC, and Michael

Flores. Verizon filed the operative First Amended Complaint on January 23,

2024, adding Defendants Doe 1 (as the personal representative of the Estate of

Jesus Garcia), Majestic Enterprises LP, and Jesmar Properties Inc. The FAC asserts causes of action for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, (3) forcible detainer, (4) specific performance, and (5) declaratory relief.

The dispute arises from a lease between Verizon (lessee) and Jesus Garcia and Marlene Garcia (lessor) for the operation of a wireless communications facility (the Facility). In 2010, Jesus Garcia and Marlene Garcia quitclaimed their interest to Majestic Enterprises LP (Majestic), which became the landlord, although Jesus Garcia (and now his estate) and Marlene Garcia remained liable for breaches of the agreement. Verizon alleges that in 2021, Majestic began improperly restricting Verizon's access to the premises and prevented Verizon from fully operating the Facility. In particular, Verizon's contractors were prevented from entering the premises to perform necessary maintenance and modifications.

On April 15, 2024, Majestic filed a cross-complaint against Verizon, with the operative Second Amended Cross-Complaint filed on December 10, 2024. The SACC asserts causes of action for (1) breach of contract, (2) trespass, (3) private nuisance, and (4) declaratory relief. Majestic alleges that Verizon encroached onto areas of the premises beyond the scope permitted by the lease. Majestic further alleges that Verizon breached the lease by operating equipment that violates the FCC's guidelines for Radio Frequency (RF) emissions because Verizon failed to implement the required warnings or protective measures.

On August 21, 2026, Majestic filed the instant two motions to compel Verizon's further responses to Requests for Production, Set Two and Form Interrogatories, Set Two. Verizon filed oppositions on September 8, 2026. Majestic filed replies on September 14, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party "is entitled to demand answers to

its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Majestic has satisfied the meet and confer requirement. (See Dack Decl.)

DISCUSSION

I.

Requests for Production, Set Two (CRS# 0009)

a. Time Period

The dispute over the RFPs centers on Verizon’s refusal to produce documents predating March 2018. Verizon has limited its production according to the Court’s November 4, 2024 order limiting Spectrum’s discovery to 7 years. Majestic notes that the November 4 order pertained to different discovery requests by a different party. However, the same reasons that warranted limiting Spectrum’s discovery apply equally to the present dispute.

Namely, Verizon first entered into a lease for the subject premises back in 1989, 37 years ago. The lease was subsequently amended in 1999, 2008, 2010, and 2019. This is an expansive timeframe, and not everything in that time period is relevant to the present action. The pleadings indicate that the dispute at the center of this action arose in 2021. Thus, Verizon reasonably limited its responses to March 2018 onward. Verizon also indicates it is willing to produce documents dating back to November 2017. (Opp. 7:14-22.) Majestic has not demonstrated good cause for information beyond this time period.

Majestic argues that “discovery into Verizon’s actions that pre-date November 2017 may demonstrate Verizon’s patterns and practice as it relates to RF/EME mitigation measures, its understanding of its obligations with respect to the Subject Property and the Lease Agreement, its knowledge of its obligations to comply with FCC requirements, and more.” (Reply 8:15-18.) This is a vague, speculative assertion not amounting to good cause. November 2017 already predates the dispute in this action by several years. Majestic fails to show that a more expansive timeframe is necessary to satisfy the proffered rationale for obtaining the documents.

Majestic also argues that any request not limited in time is otherwise narrowly tailored by subject matter. Not so. For example, the RFPs seek all communications between Verizon and various individuals/entities relating to the subject property at any time. The RFPs also seek all documents relating to negotiations with the owner of the property at any time. These requests are facially overbroad and not tailored to the issues in litigation.

Therefore, the RFPs are limited to November 2017 onward.

b. Objections

Majestic takes issue with Verizon’s objections. However, Verizon is entitled to preserve objections while providing a substantive response. This is not a basis for compelling further responses.

c. Proper Labeling

“Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code Civ. Proc., § 2031.280(a).) Verizon’s production must comply with this rule, but this is not a defect with the written responses. Moreover, Verizon has since produced a letter identifying which documents correspond to each RFP. Therefore, this is not a reason to compel further responses.

II.

Form Interrogatories, Set Two (CRS# 4205)

Majestic takes issue with Verizon's response to FROG No. 17.1(b) as it pertains to RFA Nos. 9, 12, and 22. Specifically, Majestic argues that the purported facts provided in Verizon's response are evasive and fail to explain Verizon's denials to the RFAs.

However, Verizon responsively provided its reason for denying each RFA. The Court cannot compel a different response just because Majestic disagrees with the proffered reason. Verizon is required to provide a responsive answer, not to provide an unassailable justification for denying the RFAs. Verizon's answer to FROG No. 17.1(b) is responsive because it provides Verizon's reason for denying RFA Nos. 9, 12, and 22. Whether the stated facts ultimately justify the denials is not an issue for this motion.

CONCLUSION

Cross-Complainant Majestic Enterprises, LP's motion to compel further responses to Requests for Production, Set Two is GRANTED in part. Document production is limited to November 2017 onward.

Majestic's motion to compel further responses to Form Interrogatories, Set Two is DENIED.

Sanctions are denied as the parties acted with substantial justification.